

25SMCV05308 25SMCV05308

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C07%2F10%2F2026

Source SHA-256: 29f11b00e059043f88a51d0309979051e91f57aa58dd0f9a76dc49d45cf7ec3c

Case Number: 25SMCV05308 Hearing Date: July 10, 2026 Dept: I

The case was filed on October 14, 2025. That was some time ago given that this is a UD case. In this case, there was initially a default entered. The court vacated the entry of default on December 17, 2025. At the same time, it recalled and quashed the writ of execution that had issued. It was clear at that time that defendant was aware of the lawsuit (after all, defendant had successfully moved to vacate the prior default and recall the writ). But defendant did not answer. Instead, defendant moved to quash service of the summons. That motion was denied on January 30, 2026. However, defendant still did not answer or otherwise respond to the complaint. Accordingly, on February 11, 2026, defendant's default was entered. A writ of possession then issued. Judgment in conformity with the default was entered on March 4, 2026, and the application for a stay was denied on March 6, 2026. A writ of possession thereafter issued on March 6, 2026. Shortly thereafter (apparently on the same day), defendant removed the case to federal court and a notice of removal was filed. A second notice of removal was filed on April 21, 2026. Thereafter, defendant again sought a stay of the writ—which had been issued before the notice of removal had been filed. That request was denied, but defendant was advised that the federal court, which now had jurisdiction over the matter, could issue such relief. On May 6, 2026, defendant filed a notice that she had filed a bankruptcy action on April 30, 2026, and noted the automatic stay. She then sought to recall the writ again. The court again denied the request due to a lack of jurisdiction.

However, the court noted that she could seek that relief from either the Federal District Court (to which she had removed the case) or the Bankruptcy Court (in which she had filed a bankruptcy petition). After that, Kalani King, who claimed to live in the unit in question, sought relief under Arrieta. But again, the court denied the relief because the court lacked jurisdiction.

Defendant again sought a stay on June 8, 2026, and it was denied on June 10, 2026, for the same reason.

Defendant now seeks a stay again. But the facts have not changed. This court has no jurisdiction. It is unclear whether the Federal District Court has jurisdiction or the Federal Bankruptcy Court has jurisdiction, but it appears that this court has no jurisdiction. If plaintiff wants a stay of the judgment against her or the resulting writ, she must seek it there. The court notes that if either of those courts suggests that this court does have jurisdiction and is the proper forum to consider her request, this court will entertain an ex parte application to so consider. That is not to say the court will grant the relief, but at least the court will consider it because then it will be clear that this court has the power to do so. Because, until then, the court believes it lacks the power to start issuing orders in a case that is not before it (but rather is in the federal courts), the application is DENIED.